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Case Number: 24TRCV02774 Hearing Date: July 1, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JUAN MANUEL JIMENEZ

;

Plaintiff,

vs.

contemporary services

corporation

, et al.;

Defendants.

Case

No.:

24TRCV02774

Hearing

Date:

July
1, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

JUAN MANUEL JIMENEZ'S MOTION TO QUASH DEFENDANTS' SUBPOENAS FOR PLAINTIFF'S
EMPLOYMENT RECORDS

(2)

PLAINTIFF

JUAN MANUEL JIMENEZ'S REQUEST FOR SANCTIONS

(3)

defendantS'

REQUEST FOR SANCTIONS

MOVING PARTY: Plaintiff, Juan Manuel Jimenez

RESPONDING PARTY: Defendants, Stadco LA, LLC, Contemporary
Services Corporation, and Pincay RE,
LLC

(1)

Plaintiff

Juan Manuel Jimenez's Motion to Quash Defendants' Subpoenas for Plaintiff's
Employment Records is GRANTED IN PART pursuant to Code of Civil Procedure
section 1987.1.

(2)

Plaintiff

Juan Manuel Jimenez's Request for Sanctions is DENIED pursuant to Code of Civil

Procedure section 2023.030, subdivision (a).

(3)

Defendants'

Request for Sanctions is DENIED pursuant to Code of Civil Procedure section 2023.030, subdivision (a).

The Court considers the moving papers filed on April 17, 2026, the opposition brief filed on June 17, 2026, and the reply brief filed on June 24, 2026.

BACKGROUND

Factual Background

On August 20, 2024, plaintiff Juan Manuel Jimenez ("Plaintiff") filed the Complaint against the following defendants: Stadco LA, LLC; Contemporary Services Corporation ("CSC"); Hollywood Park Land Company, LLC; Hollywood Park Management Company, LLC; Pincay RE, LLC; Jason Gannon; and DOES 1 through 50. On March 18, 2025, Plaintiff filed the First Amended Complaint ("FAC") against the same defendants, alleging two causes of action: (1) General Negligence and (2) Intentional Tort. The second cause of action was asserted against CSC and DOES 1 through 50.

On May 28, 2025, the Court sustained CSC's demurrer to Plaintiff's second cause of action for intentional tort and granted CSC's motion to strike the requests for punitive and exemplary damages. (May 28, 2025 Minute Order, pp. 3, 6.) The Court granted Plaintiff leave to amend this cause of action and the request for punitive and exemplary damages. (May 28, 2025 Minute Order, p. 6.)

On June 13, 2025, Plaintiff filed the Second Amended Complaint against the same defendants. In this complaint, Plaintiff asserted six causes of action (1) Negligence; (2) Assault; (3) Battery; (4) Intentional Infliction of Extreme Emotional Distress; (5) Civil Code § 51.7 (Ralph Act); and (6) Civil Code § 52.1 (Bane Act). However, on December 16, 2025, the Court struck out the second, third, fourth, fifth, and sixth causes of action, which included allegations and claims for punitive damages, after determining that it had not granted Plaintiff leave to include

these new causes of action. (December 16, 2025 Minute Order, p. 5.)

On March 18, 2026, the Court granted Plaintiff leave to file the Second Amended Complaint (“SAC”) with the new causes of action. (March 18, 2026 Minute Order, p. 5.) Subsequently, on March 23, 2026, Plaintiff filed the amended SAC against the following defendants: Contemporary Services Corporation (“CSC”); Hollywood Park Land Company, LLC; Hollywood Park Management Company, LLC; Pincay RE, LLC; Stadco LA, LLC; Alfred Anthony; Legends Hospitality LLC; and DOES 1 through 50. This amended complaint includes the following six causes of action: (1) General Negligence; (2) Battery; (3) Assault; (4) Intentional Infliction of Extreme Emotional Distress; (5) Civil Code § 51.7 (Ralph Act); and (6) Civil Code § 52.1 (Bane Act).

On March 24, 2026, defendants Stadco LA, LLC, CSC, and Pincay RE, LLC (collectively, “Defendants”) issued a deposition subpoena for the production of business records to Plaintiff’s former employer, KNL Luxury Inc. (Declaration of Ilia Borisov (“Borisov Decl.”), ¶ 4, Exh. A.) The subpoena requests “[a]ll documents and records, including employment application, work absence records, medical reports, disability, injury, incident reports, pre-employment medical examination, employee progress reports and disciplinary actions pertaining to the employment of [Plaintiff] from 01/01/2018 to, and including, the present.” (Borisov Decl., ¶ 4, Exh. A.)

On March 27, 2026, Plaintiff’s counsel emailed to arrange a meeting regarding the subpoena, stating that “Plaintiff is not making a claim for lost wages.” (Borisov Decl., ¶ 6, Exh. B.) In the email, Plaintiff’s counsel also requested that Defendants’ counsel “explain the relevance of the requested categories, including disciplinary records, the employment application, incident reports, and employee progress or performance records[.]” contending that “[t]hese requests are unrelated to the claims or defense at issue and constitute an unwarranted invasion of Plaintiff’s privacy.” (Borisov Decl., ¶ 6, Exh. B.)

On March 31, 2026, Defendants’ counsel responded, outlining their rationale for the necessity of the subpoenaed documents and asserting that “[t]he subpoena is proper.” (Borisov Decl., ¶ 6, Exh. B.)

On April 8, 2026, Plaintiff's counsel replied, asserting that Defendants "have still not explained how disciplinary records, the employment, application, incident reports, and employment application, incident reports, and employee progress or performance records are connected to anything[.]" (Borisov Decl., ¶ 6, Exh. B.) Furthermore, Plaintiff's counsel stated, "If we cannot get this resolved by end of week, we will have no other alternative but to file a motion to quash." (Borisov Decl., ¶ 6, Exh. B.)

On April 17, 2026, Plaintiff formally served their objection to the deposition subpoena. (Borisov Decl., ¶ 6, Exh. C.)

LEGAL STANDARD

Code of Civil Procedure section 1987.1, subdivision (a), provides: "If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Pursuant to Code of Civil Procedure section 1987.2, subdivision (a), courts have the discretion to "award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted

with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.420, subd. (h).)

DISCUSSION

Plaintiff

seeks to quash a deposition subpoena for the production of business records issued to Plaintiff's former employer, KNL Luxury Inc (“KNL”), “or in the alternative, [] a protective order limiting the subpoena to those narrow categories and time periods directly relevant to the claims and defenses in this action.” (Motion, pp. 2:3-6, 5:7-9.) The subpoena requests “[a]ll documents and records, including employment application, work absence records, medical reports, disability, injury, incident reports, pre-employment medical examination, employee progress reports and disciplinary actions pertaining to the employment of [Plaintiff] from 01/01/2018 to, and including, the present.” (Borisov Decl., ¶ 4, Exh. A.)

Plaintiff presents several grounds for quashing the subpoenas, including:

(1) “Defendants’ subpoena is impermissibly overbroad in that it seeks broad categories of Plaintiff’s employment records over an approximately eight-year period, including categories bearing no rational connection to the claims or defenses in this action[;]” (2) “Defendants’ subpoena seeks documents and information that are not reasonably calculated to lead to the discovery of admissible evidence[;]” (3) “Defendants’ subpoena violates Plaintiff’s constitutional right to privacy[;]” and (4) “Defendants cannot establish the direct relevance required to justify the breadth of the subpoena or the wholesale abrogation of Plaintiff’s constitutionally protected records.” (Motion, p. 2:10-12, 15-16, 18, 21-22.)

Constitutional

Right to Privacy

Article 1 of the California Constitution recognizes a constitutional right to privacy, which “protects an individual’s reasonable expectation of privacy against a serious invasion.” (Faunce v. Cate (2013) 222 Cal.App.4th 166, 171.) Under California law, even highly relevant, non-privileged information may be shielded from discovery if its disclosure would violate a person’s inalienable right to privacy. (See *Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) The right to privacy protects the individual’s reasonable expectation of privacy against a

serious invasion. (*Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 370.) In general, when evaluating a discovery dispute that involves a privacy claim, the trial court should apply the framework outlined in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1 (*Hill*).

First, a claimant must demonstrate that they have a “legally protected privacy interest.” (*Hill*, *supra*, 7 Cal.4th at p. 35.) Second, the claimant must show that they have a reasonable expectation of privacy given the circumstances, which include the customs, practices, and physical settings surrounding particular activities. (*Id.* at pp. 36-37.) Third, the invasion of privacy must be serious in terms of its nature, scope, and actual or potential impact. (*Id.* at p. 37.) If there is a reasonable expectation of privacy and the invasion of privacy is serious, then the court must balance the privacy interest at stake against other competing or countervailing interests. (*Id.* at pp. 37-40.)

The California Supreme Court has clarified that when applying the *Hill* analysis, the initial burden of demonstrating a privacy interest rests with the party asserting such an interest. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) The Court has refuted case law that mandates a party seeking the discovery of private information to prove a compelling interest; instead, the responsibility lies with the party opposing the discovery to delineate the extent and seriousness of the anticipated invasion of privacy. (*Id.* at p. 557.) “What suffices to justify an invasion will...vary according to the context.” (*Ibid.*) Only obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. (*Id.* at p. 556.)

Here, Plaintiff fails to demonstrate the existence of a “legally protected privacy interest” that would warrant the exclusion of all employment records. Plaintiff’s argument primarily relies on the ruling in *Britt v. Superior Court* (1978) 20 Cal.3d 844, 864, which states that “while [the plaintiff] may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this lawsuit, they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past.” (Motion, p. 7:22-25.) Consequently, this case establishes Plaintiff’s legally protected privacy interest concerning unrelated medical or

psychotherapeutic treatments. Plaintiff fails to demonstrate that this privacy interest extends to all requested records, including employment records. The protection afforded to unrelated medical or psychotherapeutic treatments does not automatically apply to all other requested records. Thus, the Court will confine its constitutional analysis to the requests for medical or psychotherapeutic treatments.

Regarding Plaintiff's reasonable expectation of privacy, they do not directly argue that there is a reasonable expectation of privacy concerning the requested medical records, which include pre-employment examinations, medical reports, disability records, and injury records. Plaintiff argues that the pre-employment medical examination record "is not a comprehensive medical history, it is not a diagnostic record, and it is not a substitute for discovery of Plaintiff's actual medical treatment records from his actual treating providers[.]" (Motion, p. 11:15-17.) This argument does not establish any reasonable expectation of privacy.

With respect to the medical reports, disability records, and injury records, Plaintiff claims that he "has not alleged that he sought accommodation from KNL Trucking, that he filed a workers' compensation claim with KNL Trucking, or that he missed work on account of the incident[.]" and he "has not placed his employer's knowledge of his condition in issue." (Motion, p. 12:2-4.) However, as Defendants indicate, Plaintiff has asserted a claim for loss of earnings in his Second Amended Complaint, filed on March 23, 2026. Plaintiff states, "As a direct and legal result of the negligence of Defendants, and each of them, Plaintiff suffered and continues to suffer economic damages, including, but not limited to, past and future medical expenses, loss of earnings, and loss of earning capacity." (Declaration of Andrea J. Lee Sandoval ("Sandoval Decl."), ¶ 10.)

While Plaintiff contends that he is not pursuing a claim for loss of earnings, the Second Amended Complaint contradicts this assertion. (Borisov Decl., ¶ 7.) Plaintiff has not moved to dismiss this claim. Therefore, although Plaintiff maintains that the information in question is not relevant, the Court concludes that matters relating to accommodations, workers' compensation claims, or missed work are pertinent, as they may either support or weaken Plaintiff's potential claim for loss of earnings. In light of the circumstances, the Court finds there is no reasonable expectation of privacy regarding this information.

Overbroad

Plaintiff contends that the deposition subpoena “demands essentially every document in Plaintiff’s employment file, spanning nearly eight years, without regard to whether any particular category or time period is tied to the claims and defenses at issue.” (Motion, p. 9:21-23.)

Defendants’ subpoena requests “[a]ll documents and records, including employment application, work absence records, medical reports, disability, injury, incident reports, pre-employment medical examination, employee progress reports and disciplinary actions pertaining to the employment of [Plaintiff] from 01/01/2018 to, and including, the present.” (Borisov Decl., ¶ 4, Exh. A.) This indicates that Defendants seek to access the entirety of Plaintiff’s employment file from 2018 onward. Such a sweeping request is not permissible without clear justification.

Relevance

“Although the scope of civil discovery is broad, it is not limitless. [Citation.] In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. [Citation.] To meet this standard, a party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities.

[Citation.] In assessing the party’s proffered justification, courts must keep in mind the more limited scope of discovery available from nonparties. [Citation.]” (Board of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1039, internal citations and quotations omitted.)

Defendants argue that “the employment records sought [] are directly relevant to central issues regarding Plaintiff’s claims for injuries[.]” because “Plaintiff has placed his injuries, the severity, and his functional limitations at issue by alleging serious physical and mental injuries and claiming ongoing treatment during the period of his employment at KNL[.]” (Opp., p. 3:16-20.) Specifically, Defendants reference

Plaintiff’s claims of a broken wrist, neck and back pain, depression, post-traumatic stress disorder, sexual dysfunction, and arm and wrist pain, as

well as the treatment he received from neurologic, orthopedic, radiologic, and pain management healthcare providers during his employment at KNL from 2022 to 2023. (Opp., p. 3:21-26.)

According to Defendants, they “are entitled to explore whether any of the injuries, residuals, and/or treatment impacted his activities of daily living, including his work and employment, and if so to what extent it was impacted.” (Opp., p. 4:1-3.) They maintain that these employment records “document objective facts about Plaintiff’s attendance, any work restrictions or accommodation, his ability to perform essential job duties, and any functional changes observed by his employer during the relevant period.” (Opp., p. 4:13-15.) Defendants believe this information is pertinent not only to Plaintiff’s claim for loss of earnings but also to his physical, emotional, cognitive, and mental condition both prior to and following the alleged incident. (Opp., p. 4:4:-6.)

Here, given that Plaintiff’s claim for loss of earnings remains within his SAC, the Defendants are entitled to information that would allow them to evaluate whether his injuries affected his work performance. However, this entitlement does not extend to the entirety of Plaintiff’s employee file from 2018 onward. Rather, the Court finds that “[e]mployment records that reflect attendance, leave, restrictions, accommodations, fitness determinations, and performance or discipline tied to the ability to perform job duties are directly probative of the functional impact of the injuries.” (Opp., p. 5:16-19.) Nonetheless, the Court emphasizes that these records must be directly associated with Plaintiff’s alleged injuries.

Plaintiff’s employer is required to produce (1) records concerning attendance from 2018 to the present, (2) medical leave associated with the 2022 incident, (3) any restrictions or accommodations made for medical reasons since 2018, (4) physical and mental fitness determinations from 2018 to the present, (5) incident reports resulting in injury to Plaintiff from 2018 to the present, and (6) any performance or disciplinary actions arising from medical issues occurring after the 2022 incident. Moreover, Defendants are permitted to obtain documents from 2018 onward within the specified categories, as such documents will facilitate Defendants’ comparison of Plaintiff’s work performance before and after the incident.

Accordingly, Plaintiff’s motion to quash is GRANTED IN PART.

Requests
for Sanctions

Both Plaintiff and Defendants submit requests for sanctions against one another under Code of Civil Procedure section 2023.030, subdivision (a), asserting that each party has failed to comply with the discovery process.

(Motion, p. 12:9-24; Opp., pp. 6:19-7:10.)

“The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).)

The Plaintiff and Defendants’ respective request for sanctions is DENIED. The deposition subpoena was not quashed; rather, it was amended with respect to scope. Hence, both side acted with substantial justification.

ORDERS

1)

Plaintiff Juan Manuel Jimenez’s Motion to Quash Defendants’ Subpoenas for Plaintiff’s Employment Records is GRANTED IN PART.

2)

The subpoenaed entity is instructed to provide records concerning attendance from 2018 to the present, medical leave associated with the 2022 incident, any restrictions or accommodations made for medical reasons since 2018, physical and mental fitness determinations from 2018 to the present, incident reports resulting in injury to Plaintiff from 2018 to the present, and any performance or disciplinary actions arising from medical issues occurring after the 2022 incident.

3)

Plaintiff Juan Manuel Jimenez's Request for
Sanctions is DENIED.

4)

Defendants' Request for Sanctions is DENIED.

5)

Plaintiff is ordered to give notice of this
Court's ruling.

IT IS SO ORDERED.

DATED: July 1, 2026

Tamara

Hall

Judge

of the Superior Court